IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
SPECIAL BENCH
COURT – 1

ITEM No.126 C.P.(CAA)/7(AHM)2023 in
C.A.(CAA)/67(AHM)2022

Proceedings under Section 230-232

IN THE MATTER OF:

HFW Textiles Pvt Ltd **.....Applicants**
MBM Textiles Pvt Ltd

Order delivered on: 03/05/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Mr. Vinit Nagar, Ld.PCS.
For the Respondent :

ORDER

Mr. Vinit Nagar, Ld.PCS for the applicant appears.

Ld. Counsel Ms. Pankti Shah appears for the Income Tax Department and states that they have filed the report and they have no objection to the approval of the Scheme.

Mr. Shiv Pal Singh, Ld. Assistant Director appears for Regional Director's office and states that they have filed the report and only crucial observation is in para-(f) regarding compliance of FEMA and RBI Regulations by the petitioner companies.

Ld. PCS Mr. Vinit Nagar appearing for the petitioner companies states that they have filed affidavit that they will comply with the FEMA and RBI Regulations. On this statement, Ld. Assistant Director for RD's office states that they do not have any objection if the Scheme is approved.

Mr. Suresh Shrivastava appearing for the office of the Official Liquidator states that OL's office has no objection for the approval of the Scheme provided the petitioner companies undertake to comply with the FEMA and RBI Regulations.

List for hearing before the Regular Bench on 09.05.2023

-SD- -SD-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

SHAMMI KHAN
MEMBER (JUDICIAL)

Sudha